

Shyam Sunder Goswami v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 February 2020 · WRIT - C No. - 2237 of 2020 · **Writ disposed; EE to consider objection in one month; coercive action stayed.**

HEADNOTE

On a challenge that inspection was contrary to clause 8.1 of the U.P. Electricity Supply Code, 2005, and that a theft/final assessment had been made without considering the consumer's objection to the Executive Engineer, the Division Bench disposed of the writ by directing the Executive Engineer to consider that objection within one month and pass an appropriate order in accordance with law, staying coercive action on the demand dated 26 November 2019 for that period. Whether clause 8.1 non-compliance vitiated the assessment, and whether a section 127 appeal barred the writ, were not decided.

FACTUAL SUMMARY

The petitioner challenged inspection of his premises as contrary to clause 8.1 of the U.P. Electricity Supply Code, 2005. The department alleged theft and use of a domestic connection for a school, and made a final assessment with a demand dated 26 November 2019, said to be appealable under section 127 of the Electricity Act, 2003. He had already represented to the Executive Engineer; the final order issued without considering that objection. Licensee's counsel did not dispute that inspection was not in accordance with clause 8.1.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

unconsidered objection to theft assessment after clause 8.1 inspection

HOLDING

Where the consumer has already filed an objection before the Executive Engineer against a theft or final assessment and that objection has not been considered, the writ may be disposed of by directing the Executive Engineer to consider the objection within a stipulated period and pass an appropriate order in accordance with law, staying coercive action on the demand for that period, without deciding the clause 8.1 inspection challenge on merits or relegating the consumer to a section 127 appeal. ¶ 3

PRINCIPLE TAGS

UP-2005::8.1 Inspection was alleged, and not disputed by the licensee, to have been conducted contrary to clause 8.1. The Court did not quash the assessment on that ground; it directed the Executive Engineer to consider the consumer's pending objection in accordance with law and stayed coercive recovery for one month. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSPECTION CONTRARY TO CLAUSE 8.1 VITIATES THE FINAL THEFT ASSESSMENT

Licensee's counsel did not dispute that inspection was not in accordance with clause 8.1, but the Court did not quash the assessment on that ground. ¶ 3

NOT DECIDED — WHETHER THE FINAL ASSESSMENT IS APPEALABLE UNDER SECTION 127 OF THE ELECTRICITY ACT, 2003 SO AS TO BAR THE WRIT

The licensee submitted that the assessment was appealable under section 127; the Court did not relegate the petitioner to that appeal. ¶ 3

